Superior Court of the State of California
County of Orange

TENTATIVE RULINGS

DEPARTMENT C27

JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **not** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it is the party's responsibility to provide a court reporter.

Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found by accessing the following link:
https://www.occourts.org/system/files?file=privately_retained_court_reporter_policy.pdf

Additional information about the availability of court reporters can be found at: https://www.occourts.org/divisions/court-reporter-services/availability-court-reporters

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C27 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/civil-remote-hearings prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. The Court's policies and procedures, including Guidelines for Remote Proceedings are available at https://www.occourts.org/general-information/news-events/covid-19-response/civil-covid-19-response and will be strictly enforced. A helpful video detailing how to check-in and appear by video can be found at https://www.youtube.com/embed/CU090y2oaWM?rel=0&autoplay=1.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
August 10, 2026

	Case Name	Tentative
101	2024-01415728 Nutrien Ag Solutions, Inc. vs. Salt Capital, LLC	**Motion for Summary Judgment/Adjudication** Plaintiff Nutrien Ag Solutions, Inc.'s ("Plaintiff") unopposed Motion for Summary Judgment on its Complaint is granted. Plaintiff's alternative request for summary adjudication is moot. Plaintiff moves for summary judgment on its breach of contract claim and common counts. The Court notes that default was entered as to Defendants Salt Capital, LLC and Salt Capital Group, Inc. (the "Salt Capital Defendants") on or about 12/9/25. (ROA 125.) The only defendant not in default is Defendant Donald Doungpanya. Legal Standard "A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) Simply put, "[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment." (*Id.* at p. 855.) Where a plaintiff seeks summary judgment, the plaintiff's burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c, subd. (p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (*Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 565, citing *Aguilar*, supra, 25 Cal.4th at p. 853 ["summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action"].) If the plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar*, supra, 25 Cal.4th at p. 843.) Breach of Contract "[T]he elements of a cause of action for breach of contract are [1] the existence of the contract, [2] plaintiff's performance or excuse for nonperformance, [3] defendant's breach, and [4] the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821, internal citation omitted.) Here, the undisputed material facts establish (ROA 137): [1] The existence of an agreement for Plaintiff to furnish the Salt Capital Defendants with goods and services, on a credit account, with Defendant Doungpanya agreeing to be the guarantor. (UF nos. 1, 2.) [2] Plaintiff performed under the agreement by providing the goods and services to the

Salt Capital Defendants. (UF no. 5.)
[3] Defendants breached the agreements by failing to pay the invoices when due and despite Plaintiff's demand. (UF no. 4.) [4] Plaintiff has been damaged in the principal sum of $80,764.66, plus $12,752.64 in accrued finance charges (up to and including through 6/30/24), and pre-judgment finance charges at the rate of 18% per annum from 6/30/24. (UF nos. 8, 10, 11.)

Accordingly, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the breach of contract claim. The burden shifts to Defendant Doungpanya to show that a triable issue of material fact exists. Defendant fails to meet this burden as he has not opposed the motion.

<u>Common Counts</u>
The elements of a common count for open book account are: (1) that plaintiff and defendant had financial transactions; (2) that plaintiff kept an account of the debits and credits involved in the transactions; (3) that defendant owes plaintiff money on the account; and (4) the amount of money that defendant owes plaintiff. (CACI 372.)

The elements of a common count for account stated are: (1)
defendant owed plaintiff money from previous financial transactions; (2) plaintiff and defendant, by words or conduct, agreed that the amount stated in the account was the correct amount owed to plaintiff; (3) defendant, by words or conduct, promised to pay the stated amount to plaintiff; (4) defendant has not paid plaintiff all of the amount owed under this account; and (5) the amount of money defendant owes plaintiff. (CACI 373.)

Lastly, a common count for goods and services rendered requires the plaintiff to show: (1) defendant owed plaintiff money from previous financial transactions; (2) plaintiff and defendant, by words or conduct, agreed that the amount stated in the account was the correct amount owed to plaintiff; (3) defendant, by words or conduct, promised to pay the stated amount to plaintiff; (4) defendant has not paid plaintiff all of the amount owed under this account; and, (5) the amount of money defendant owes plaintiff. (CACI 373.)

"When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered." (*Maggio, Inc. v. Neal* (1987) 196 Cal. App. 3d 745, 753.)

Here, Plaintiff has demonstrated:

- There were financial transactions between Plaintiff and the Salt Capital Defendants, which Defendant Doungpanya personally guaranteed. (UF nos. 1, 2.)
- Plaintiff kept an account of the debits and credits from the financial transactions and delivered a copy of all statements to Defendants, who did not contest any of the charges. (UF no. 3.)
- The reasonable value of the goods and services sold and delivered to Defendants is $80,764.66. (UF no. 8.)
- The reasonable value of the goods and services sold and delivered to Defendants is due and unpaid despite Plaintiff's demand. (UF no. 9.)

Accordingly, Plaintiff has met its initial burden of proving its common counts. The burden shifts to Defendant Doungpanya to show a triable issue of material fact. Defendant Doungpanya has not met this burden, because he failed to oppose the motion.

For the foregoing reasons, the Court grants the motion for summary judgment. Additionally, under CCP section 437c, subdivision (b)(3), the Court exercises its discretion

		to grant the motion, because Plaintiff has met its initial burden and Defendant has not filed an opposing separate statement. Plaintiff shall give notice of the ruling and submit a proposed judgment to the Court and serve it upon all parties.
102	2024-01443801 Qiu vs. You Media Inc.	**Motion for Judgment on the Pleadings** Plaintiff Weijia Qiu's Motion for Judgment on the Pleadings on the Second Amended Complaint is taken off calendar as moot. The motion was directed to the unverified answer filed by Defendants on or about 4/2/26. (ROA 69.) On or about 7/6/26, Defendants filed a verified first amended answer. (ROA 80.) Accordingly, the Court finds the motion is moot. The Clerk shall give notice of the ruling.
103	2020-01126907 Security National Insurance Company vs. DCE Construction Inc.	**Motion for Entry of Judgment** No tentative issued.
104	2021-01208837 Rudat vs. Sauter	**Motion to Set Aside/Vacate Dismissal** The motion of plaintiff Daniel Rudat and cross-defendants Fred and Marta Rudat for an order setting aside the dismissal entered on 3/16/26 is denied. [ROA # 476.] **Facts** This was an action by Daniel Rudat to recover for personal injuries he suffered when he fell off the roof of a house he had been hired to do construction on by its owner, Gary Sauter and/or Longview Investments LLC. [First Amended Complaint ("FAC" – ROA #25), ¶¶ 9-11; Doe 1 Amendment (ROA #106).] The house was located in the state of Washington. [FAC, ¶ 8.] Plaintiff was represented by the law firm of Pratt Williams, APLC/Pratt Law Group in the filing of his complaint and throughout this action until its dismissal on 3/16/26. [*Id.* and ROA ## 53, 463.] He was also represented by Kramer Trial Lawyers through trial. [ROA ## 243, 432, 448.] Sauter responded to the FAC. [ROA ## 29, 51.] Then, he and Longview filed a cross-complaint for indemnity against Fred and Marta Rudat. [First Amended Cross-Complaint ("FAXC" – ROA #201), ¶¶ 8-16.] Fred and Marta Rudat answered the FAXC through attorney Edward Sublett, who has represented them throughout. [ROA #230.] On 4/16/24, the parties stipulated to trifurcating the trial so that the conflict of law issue (California versus Washington law) would be tried to the Court first. [ROA #271.] Further, they stipulated that if Washington Law was found to apply Plaintiff's complaint would be dismissed without prejudice. [*Id.*, ¶ 6.] After a year of litigation and continuances, the phase I trial was held and the Court found

that Washington law applied. [11/10/25 Minute Order (ROA #447).] On 3/16/26, Plaintiff and Cross-Complainants together requested and obtained dismissal of their pleadings. [ROA #463.]

On 3/20/26 Edward Sublett substituted in as Plaintiff's counsel in place of Pratt Law Group. [ROA #470.]

Now, through counsel Sublett, Plaintiff and Cross-Defendants seek to have the dismissal set aside on the ground of mistake under Code of Civil Procedure section 473(b)

Legal Standard

Code of Civil Procedure section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of "mistake, inadvertence, surprise or excusable neglect." Generally, there are two avenues to such relief under Code Civ. Proc. § 473(b). *Leader v. Health Industries of Am., Inc.* (2001) 89 Cal.App.4th 603, 615. First, a court may grant discretionary relief upon the moving party's showing of mistake, inadvertence, surprise or excusable neglect. *Id.* at 615-616. Second, where the defaulting party's attorney files an attorney affidavit of fault the relief is mandatory. *Id.*

Discussion

First, Plaintiff apparently seeks mandatory relief from dismissal of his complaint based on the attorney's affidavit of fault. [*See* Sublett Decl. (ROA #472), at 2:24-25.] The problem with this is that Sublett was not Plaintiff's counsel at the time of the dismissal, much less when the parties filed the Stipulation that set the stage for it. *Rogalski v. Nabers Cadillac* (1992) 11 Cal.App.4th 816, 821 ("Attorney Rohr filed an affidavit stating the defaults were the result of surprise and neglect. However, he was not representing Nabers at the time the defaults were obtained.").

Any error by Sublett did not impact Plaintiff, who had his own counsel. *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 427–428 ("The mandatory relief prong of section 473(b) refers to 'an *attorney's* sworn affidavit attesting to *his or her mistake*, [etc.]' and a 'resulting default" or "*default* judgment" entered "*against his or her client.*'").

Counsel Sublett was Cross-Defendant's counsel at that the time. Cross-Defendant themselves do not have standing to seek to set aside the dismissal of the complaint to which they were not a party.

Second, Plaintiff seeks discretionary relief to set aside the dismissal of his complaint asserting, through Sublett, mistake as to the legal ramifications of dismissal versus judgment. Again, though, there is no evidence that *Plaintiff's* counsel was mistaken when signing the dismissal. Nor is there any evidence that Plaintiff himself was misled.

Moreover, the arguments asserted do not account for the prior Stipulation that set forth an agreement not only for trifurcation of trial but as to the result – that is, dismissal of the complaint – if the Court were to find (which it did) that Washington law applied to Plaintiff's claims. If the dismissal were set aside, the Stipulation requiring entry of dismissal would remain.

It should also be noted that the Stipulation pre-dated the dismissal by *two years.* That would have been ample time for counsel and the parties involved to understand what they were doing. The fact that there was no attempt to deviate from the plan prior to dismissal suggests that Plaintiff's counsel did not view the Stipulation or the dismissal to be a

		mistake. Finally, the usual policy favoring resolution on the merits is not in play here. *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696 ("The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.")(internal quote marks omitted). Plaintiff did get a trial and ultimate resolution on the merits. The dismissal was the result of that trial and resolution. Based on all of the above, the motion to set aside the dismissal entered in this action is denied. Clerk is ordered to give notice.
105	2025-01526242 Luna vs. Eckart	**Motion for Leave to File Cross Complaint** The Court grants Defendant Mike Allen Eckart's unopposed motion to file the proposed cross complaint against Plaintiff Levin Luna. Here, the proposed cross-complaint is compulsory. Therefore, the motion must be granted unless there is bad faith or prejudice. The Court finds neither. Thus, the motion is granted. Defendant shall file and serve his cross-complaint within 15 days. Defendant is ordered to serve notice.
106	2025-01525012 Blalock vs. Swinerton Incorporated	**Demurrer to Amended Complaint** Defendant Swinerton, Inc.'s demurrer to Plaintiff Wendy Blalock's First Amended Complaint ("FAC") is overruled. Defendant's request for judicial notice is granted. Plaintiff is ordered to give notice.
107	2024-01407287 Mirrafati vs. California Receivership Group, Inc.	**Demurrer to Amended Complaint** **Continued to September 23, 2026 at 2:00 p.m. in Department C27.**
110	2026-01554043 Noh vs. Galbi Station, Inc.	**1. Demurrer to Complaint** **2. Case Management Conference** Defendants Galbi Station, Inc. and Kyungsuk Park's ("Defendants") Demurrer to Plaintiff Kyunghee Noh's ("Plaintiff") Complaint is sustained with 30 days' leave to amend. <u>1st COA for Breach of Contract & 2nd COA for Breach of the Implied Covenant</u> "A cause of action for breach of contract requires [1] pleading of a contract, [2] plaintiff's

performance or excuse for failure to perform, [3] defendant's breach, and [4] damage to plaintiff resulting therefrom.” (*Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 655.) “In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198–199.) Or, “it may be pleaded in haec verba by attaching a copy as an exhibit and incorporating it by proper reference.” (*Wise v. Southern Pac. Co.* (1963) 223 Cal.App.2d 50, 59.)

The Court sustains the demurrer to Plaintiff’s breach of contract claim, because the Complaint is uncertain as to the parties to the agreement. Plaintiff specifically alleges that she entered into the subject contract with Defendant Park. (See Compl. at ¶ 9.) However, Plaintiff also alleges an unspecified “buyer” deposited funds into the escrow account and that the “buyer *entity*” was later “amended to Galbi Station, Inc.” “California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236.) Because Defendant Park is alleged to be an individual, and not an entity, the allegations in the Complaint are inconsistent. This is particularly confusing because, since the Complaint was filed, Plaintiff has added two additional defendants (an individual and an entity) by Doe amendments.

Because the viability of the breach of implied covenant claim depends on the existence of a contract between the parties, the Court also sustains the demurrer to the second cause of action. (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1033, quoting *Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49 [“The prerequisite for any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract”].)

<u>3rd COA for Promissory Estoppel</u>
“[P]romissory estoppel is a theory of recovery which is recognized by the law of this state.” (*De Zemplen v. Home Federal Sav. & Loan Ass'n* (1963) 221 Cal.App.2d 197, 207.) “Recovery” may be allowed where “injustice can be avoided only by enforcement of the promise, this usually occurring where the plaintiff has made a complete and substantial change of position in reliance on the promise.” (*Id.*) “The elements of a promissory estoppel claim are ‘(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3)[the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.’” (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901, citation omitted.)

In her Complaint, Plaintiff generally alleges, “Defendants made clear promises to purchase Plaintiff's business”; and, “Plaintiff reasonably relied upon these promises.” (Compl. at ¶¶ 34-35.) However, as explained, above, Plaintiff’s specific allegations (that she entered into the contract with Defendant Park) takes precedence over her general allegations that all “Defendants” made “clear promises” to purchase her business. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236.) As such, the demurrer to the promissory estoppel claim is sustained with leave to amend.

<u>4th COA for Money Had and Received</u>
“A cause of action for money had and received is stated if it is alleged [that] the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff. The claim is viable wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.” (*Avidor v. Sutter’s Place, Inc.* (2013) 212 Cal.App.4th 1439, 1454 [internal

quotation marks and citations omitted]; see also CACI no. 370.)

In her complaint, Plaintiff alleges: “Defendants deposited $94,250 into escrow in connection with the transaction”; “Defendants caused the escrow to be cancelled without lawful justification”; the escrow cancellation instructions “confirmed that $94,250 remained on deposit in the escrow account”; and, “Defendants are not entitled to recover these funds because the escrow cancellation resulted from their breach.” (Compl. at ¶¶ 16-17, 39-40.)

Defendants are correct that Plaintiff has failed to state a claim for money had and received, because she has not alleged that they actually received any money that belongs to Plaintiff. At most, Plaintiff alleges Defendants are attempting to obtain funds from the escrow that she claims belongs to her. However, Plaintiff should be given an opportunity to amend this claim.

<u>5th COA for Unjust Enrichment</u>
Defendants demur to this claim on the grounds that unjust enrichment is not recognized as a standalone cause of action. The bulk of the decisions that have expressly considered the question of whether unjust enrichment is a standalone cause of action have concluded it is not. Rather, the courts generally consider unjust enrichment as a doctrine or general principle synonymous with restitution. (See, e.g., *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231; *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138; *Jogani v. Superior Court* (2008) 165 Cal.App.4th 901, 911; *Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793.) Although the Court sustains the demurrer to unjust enrichment, Plaintiff is given leave to attempt to plead alternative theories.

<u>6th COA for Declaratory Relief</u>
By her declaratory relief claim, Plaintiff alleges “[a]n actual controversy exists between the parties regarding the rightful ownership of the $94,250 escrow funds” and that “the funds should be awarded to Plaintiff due to Defendants’ breach.” (Compl. at ¶¶ 45-46.) Because Plaintiff’s breach of contract claim fails for uncertainty, the demurrer to this claim is sustained with leave to amend, as well.

<u>7th COA for Constructive Trust</u>
Lastly, Plaintiff seeks the “imposition of a constructive trust over the escrow funds.” (Compl. at ¶ 49.) “[I]n order to create a constructive trust as defined in section 2224, three conditions must be satisfied: the existence of a res (property or some interest in the property); the plaintiff’s right to that res; and the defendant’s acquisition of the res by some wrongful act.” (*Optional Capital, Inc. v. Das Corporation* (2014) 222 Cal.App.4th 1388, 1402.) “[A] constructive trust may be imposed in practically any case where there is a wrongful acquisition or detention of property to which another is entitled.” (*Weiss v. Marcus* (1975) 51 Cal.App.3d 590, 600.)

Courts have allowed a plaintiff to plead the remedy of a constructive trust over a defendant’s objection that is a remedy and not a cause of action. (*Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 283 [“Phangureh's suggestion—that a constructive trust claim can never be a real property claim because constructive trust is a remedy and not a cause of action—is also unpersuasive”].) However, even when courts have allowed constructive trust to be pled as a cause of action, there must be an underlying claim which entitles the plaintiff to that relief. (See *Olson v. Toy* (1996) 46 Cal.App.4th 818, 823.)

		Because the Court sustains the demurrers to Plaintiff's first through sixth causes of action, at this point, there is no underlying claim upon which the relief of constructive trust could be based. As such, the demurrer to the constructive trust claim is sustained with leave to amend, as its viability depends on the existence of an underlying claim. Plaintiff shall have 30 days from the notice of ruling to file and serve her amended complaint. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Defendants shall give notice of the ruling.
111	2025-01507066 Marquez vs. Hornet Acquisitionco, LLC	**1. Motion to Be Relieved as Counsel of Record** **2. Case Management Conference** Joshua White's, Mae-Elaine Delos Santos' and Laurel Employment Law, APC's motion to withdraw as counsel for Plaintiff Scott Marquez is granted. Upon the signing of the order, counsel shall serve said order on all parties. Counsel is ordered to again use their best efforts to serve the order on Plaintiff Scott Marquez, including mailing it to Plaintiff's last known address and electronically serving Plaintiff if his email address is known. Joshua White, Mae-Elaine Delos Santos and Laurel Employment Law, APC will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the client and Defendant. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to submit an updated order with the continued CMC date. Laurel Employment Law, APC shall give notice of the ruling.
112	2025-01467788 Alazzawi vs. Fletchall Silva	**1. Motion for Determination of Good Faith Settlement** **2. Case Management Conference** Defendant/Cross-Defendant Jason Michael Fletchall-Silva moves for an order determining that the settlement he reached with Plaintiff was made good faith pursuant to Code Civ. Proc., § 877.6. "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (See Code Civ. Proc., §877.6(c)). In order to determine a settlement was made in "good faith," a Court takes into consideration the facts and circumstances of the particular case. (See *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499). There does not appear to be any evidence of any collusion, fraud or tortuous conduct

		between the settler and the Plaintiff which would make the non-settling parties pay more than their fair share. (See Kimura Decl., ¶ 9.) Defendant states that the settlement amount is reasonable considering Plaintiff's claims against Defendant for the alleged assault and battery on the night at issue, as well as the risks and costs associated with experts, discovery, and trial. Per Code Civ. Proc., §877.6(d), "[t]he party asserting the lack of good faith shall have the burden of proof on that issue." No oppositions were filed. Accordingly, the Court finds that Defendant Jason Michael Fletchall-Silva's settlement with Plaintiff was made in good faith. Thus any claims for liability against Defendant by any other joint tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault, are barred. The case management conference is continued to November 30, 2026 at 10:00 a.m. in Department C27. Defendant shall give notice of this ruling, and file proof of service of same.
113	2023-01304133 Sepulveda vs. BaronHR West, Inc.	**1. Motion to Be Relieved as Counsel of Record** **2. Trial Setting Conference** Eric Welch, Esq.'s motion to be relieved as counsel for Defendant BaronHR West, Inc. is continued to December 7, 2026 at 2:00 p.m. in Department C27. The trial setting conference is continued to the same date and time. Counsel has failed to file proof of service of the moving papers on Plaintiff and his client pursuant to Cal. Rules Ct., Rule 3.1362(d) and Cal. Code Civ. Proc., § 1005(b). In addition, the Court is not satisfied with counsel's representation that he has no reasonable ability to obtain his client's consent because the sole owner/shareholder is incarcerated. Counsel states he was advised that another attorney is handling all remaining civil issues including this case. If this is the case, it should not be difficult to obtain and file a substitution of attorney. Incarcerated individuals have access to counsel and the means to execute documents like a substitution of attorney. Accordingly, Defendant's counsel is ordered to serve notice of the continued hearing date and this order on his client and all other parties and file a proof of service of same pursuant to the Code of Civil Procedure, no later than 5 court days before the new hearing date. With the notice and proof of service, Counsel is also ordered to file a supplemental declaration if he cannot obtain the client's consent to a substitution detailing his efforts made in this respect.
114	2025-01524116 Doe vs. Eyenovia, Inc.	**1. Motion – Other** **2. Case Management Conference** Defendant Michael Rowe's motion to revoke Plaintiff's Doe designation is granted.

Code of Civil Procedure section 367 requires that "[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." (Code Civ. Proc., § 367.)

CCP § 422.40 requires that a complaint include the "names of all the parties." The filing of a complaint as a "Doe" impairs the public's right of access to court records. (See Cal. Rules Court, rule 2.550(c).)

Courts, however, have noted that the California Legislature has expressly provided for such an exception and have affirmed the ability to proceed as a pseudonymous plaintiff under exceptional circumstances in which privacy rights are implicated. (*Doe v. Superior Court* (2016) 3 Cal.App.5th 915, 919.) "The judicial use of 'Doe plaintiffs' to protect legitimate privacy rights has gained wide currency, particularly given the rapidity and ubiquity of disclosures over the World Wide Web." (*Starbucks Corp. v. Superior Court* (Fourth Dist., Div. 3 2008) 168 Cal.App.4th 1436, 1452, fn. 7; see also *Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 765 [Section 367 requires that an action be brought by the real party in interest. It does not require that a party sue in his or her own name.])

California courts have discussed the use of pseudonyms and, in doing so, have noted that federal courts "have permitted plaintiffs to use pseudonyms in three situations: (1) when identification creates a risk of retaliatory physical or mental harm [citations]; (2) when anonymity is necessary 'to preserve privacy in a matter of sensitive and highly personal nature,' [citations]; and (3) when the anonymous party is 'compelled to admit [his or her] intention to engage in illegal conduct, thereby risking criminal prosecution,' [citations]." (*Doe v. Lincoln Unified School Dist*., 188 Cal.App.4th at 767, quoting Does I thru XXIII v. Advanced Textile Corp. (9th Cir. 2000) 214 F.3d 1058, 1068.) *Does I thru XXIII v. Advanced Textile Corp* went on to hold that "a party may preserve his or her anonymity in judicial proceedings in special circumstances when the party's need for anonymity outweighs prejudice to the opposing party and the public's interest in knowing the party's identity." (*Does I thru XXIII v. Advanced Textile Corp*., 214 F.3d at 1068.)

Here, Defendant contends there are no special circumstances necessitating the need for a pseudonym and that Plaintiff's privacy is outweighed by the public's interest. Defendant argues that Plaintiff has not established why Plaintiff's privacy concerns warrant anonymity and embarrassment and sham are insufficient to proceed under a Doe designation. This is particularly true given the strong public policy for open courts and full disclosure. Defendant also argues that the Doe designation impairs Defendant's ability to conduct discovery and investigation. Defendants would be required to file any documents that could identify Plaintiff under seal.

In Plaintiff's opposition, Plaintiff argues that sexually explicit images and videos taken from Plaintiff's personal phone without consent involves highly sensitive and sexual privacy interests and that linking him to the existence of such context could cause humiliation, reputational harm, and emotional distress. Further, Plaintiff argues that Plaintiff faces severe risk of harm from disclosure. Plaintiff, however, does not file any declaration or any admissible evidence regarding Plaintiff's privacy concerns and the risk of harm Plaintiff would suffer. For example, Plaintiff provides no evidence of Plaintiff's age, whether or not Plaintiff is a public figure, whether threats of the images and videos being released have been made, whether Plaintiff risks any retaliation, etc.

To the extent that the pictures and videos themselves invoke privacy concerns, the Court finds that there are less drastic alternative measures to protect Plaintiff's privacy that does not necessitate a Doe designation. For example, the parties could enter into a stipulated

		protective order that seals any information that describes the contents of any explicit pictures of videos of Plaintiff. Such a protective order would balance privacy concerns, avoid public disclosure of the actual highly sensitive sexual privacy of Plaintiff, but also be narrowly tailored to specific documents and/or specific references. Rather than a broad Doe designation that seals everything about Plaintiff's identity, which would add burdens to Defendant's subpoenaing third parties and filings in this case, other alternative means that only seek to seal the description of what is contained in the pictures/videos balances both Plaintiff's and Defendant's interests. In summary, the Court finds that Plaintiff has not met his burden of establishing that any of the exceptions arise to proceed with a pseudonym. Plaintiff has not offered any admissible evidence to establish the weight and extent of Plaintiff's privacy concerns and/or provide contextual facts that suggest that Plaintiff would suffer severe harm from disclosure of Plaintiff's identity. If the mere fact that litigation could reveal embarrassing allegations were sufficient to proceed anonymously, that would be the rule rather than the rare exception. The motion is therefore granted. The Court orders the parties to meet and confer on a stipulated protective order regarding non-public disclosure of pictures/videos and/or redacting/filing under seal the contents of any sensitive pictures/videos in any document that is filed in this case within the next 30 days. To the extent that the parties may not agree, Plaintiff may file a motion for a protective order within 45 days of this order. Defendant is ordered to refrain from disclosing any explicit pictures and/or videos of Plaintiff and is prohibited from describing any of the contents of any explicit pictures or videos of Plaintiff until the parties have filed a stipulated protective order with the Court or the hearing on a motion for a protective order, whichever is later. To the extent that no stipulated order is filed within the next 30 days and no motion for a protective order is filed within the next 45 days, this order shall be lifted as against Defendants on the 46th day after this hearing. The case management conference is continued to January 4, 2027 at 10:00 a.m. in Department C27. Moving Defendant to give notice.